

"DEEPFAKES REPRESENT MISINFORMATION THAT WILL BE DEALT WITH THOROUGHLY BY A LAW DOWN THE ROAD CALLED THE DIGITAL INDIA ACT. IT IS UNDERGOING CONSULTATIONS CURRENTLY"

Q. What is the government asking social media platforms like Facebook and YouTube to do?

In these cases, Prime Minister Narendra Modi's government has been ahead of the curve. We came out with the amended Information Technology Act rules in February 2021, October 2022, and again in April 2023. All these talked about safety and trust of the internet. It casts an obligation on all these platforms and makes it their responsibility to make sure that the content online, on their platforms, is not misinformation. But under Rule 3.1B, there are 11 issues that they cannot put on their platforms. These include child sexual abuse material, for example, or content that could incite people. In 3.1B (v), the rules say misinformation, patently false information, should not be carried on their platforms. If they do so, they are liable to be prosecuted under the Act because the safe harbour, which is the protection, the immunity that they have, will fall away.

Q. What is this safe harbour that social media platforms were given earlier?

One of the things that we have to understand is that the Act, the law that governs the internet and, therefore, these platforms, is an old Act that was enacted in 2020. One of the amendments that was put in the IT Act in 2009 in a blind following of the US model was something called Section 79 which essentially gives immunity to any internet platform from any kind of prosecution. The narrative there at that time was that these platforms are not responsible for the content on their platform because some user does it. Therefore, if you have to prosecute somebody, prosecute the user and not the platform. But that safe harbour has caused platforms to not have a sense of good behaviour or an obligation of good conduct. So, now we see this toxicity, and the government, unfortunately, becomes the arbiter of any dispute between the platform and the user. With the IT rules now, we say